

		The Law Firm Defendants do not oppose arbitration but contend that they should not be subject to stay of any proceedings as a result of co-Defendant Artisan’s motion to compel arbitration. As noted above, “[a] single overlapping question of law or fact may qualify as a ‘controversy’ sufficient to require imposition of stay. [Citations.]” However, “[i]f the issue which is the controversy subject to arbitration is severable,’ the court has the discretion to sever and stay proceedings on the arbitrable claims and permit any non-arbitrable issues to proceed in court. [Citations.] The party seeking severance under Code of Civil Procedure section 1281.4 must prove its claim is independent of the arbitrable matter. [Citations.]” (Mattson Technology, Inc. v. Applied Materials, Inc. (2023) 96 Cal.App.5th 1149, 1161.) Here, there is no dispute that the Law Firm Defendants have no contract or agreement with Plaintiff, that the Law Firm Defendants are not a party to any arbitration agreement with Plaintiff, and that the Law Firm Defendants are not a party to Policy and are not bound by Insurance Code Section 11580.2. Plaintiff acknowledges that Plaintiff’s claims against the Law Firm Defendants “are not founded in or intertwined with the insurance contract,” and that they are “independent tort and statutory claims based on Mr. Braun’s conduct.” (ROA 86, Plaintiff’s Opposition, Section B.) As such, the claims against the Law Firm Defendants are independent from the issues subject to arbitration, set forth above, and Plaintiff’s claims against the Law Firm Defendants should be severed such that they are not subject to the stay under Code of Civil Procedure section 1281.4. Artisan to give notice.
110	Moslehi vs. County of Orange 24-01428581	Motion for Sanctions Plaintiff Arash Moslehi (“Plaintiff”), proceeding in pro per, moves for an order dismissing and prohibiting

	Kimbal Tirey & St. John LLP from participating in this matter. There is no proof of service accompanying the motion. The motion is therefore denied for failure to comply with Code of Civil Procedure section 1005, which requires all moving papers to be served and filed at least 16 court days before the hearing. (Code Civ. Proc., §1005 (b).) In addition, a proof of service of the moving papers must be filed no later than five court days before the hearing. (Cal Rules of Court, rule 3.1300(c).) Even if the motion was properly served, Plaintiff has provided no memorandum of authorities to support the relief requested. (See Cal Rules of Court, rule 3.1113(a) (“The court may construe the absence of a memorandum as an admission that the motion . . . is not meritorious and cause for its denial . . .”).) Plaintiff also has not provided any citations to legal authorities that permit Plaintiff to move for the relief requested. Likewise, Plaintiff proffers no admissible evidence in support of his request. “Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (People v. Stanley (1995) 10 Cal.4th 764, 793.) Additionally, parties “may not enlist the court as their legal assistant to develop arguments they merely suggest.” (Paglia & Associates Construction, Inc. v. Hamilton (2023) 98 Cal.App.5th 318, 327.) “It would be unfair for one side to loft an undeveloped legal idea, to rely on the court to work it out, and to leave the opposing party with nothing concrete to tackle in the briefing.” (Ibid. [citing Hewlett-Packard Co. v. Oracle Corp. (2021) 65 Cal.App.5th 506, 565 (failing to develop a reasoned argument supported by authority improperly forces the court to decode a bare assertion that the judgment, or part of it, is erroneous)].)
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		The Motion is DENIED. Plaintiff to give notice.
111	Quick Bridge Funding, LLC vs. Workhorse Cabinetry, LLC 26-01545535	1) Motion for Summary Judgment and/or Adjudication 2) Case Management Conference Plaintiff Quick Bridge Funding, LLC moves for summary judgment on its Complaint against Defendants Workhorse Cabinetry, LLC and Jeanette Carey. For the following reasons, the motion is GRANTED. A plaintiff moving for summary judgment “bears the burden of persuasion that ‘each element of’ the ‘cause of action’ in question has been ‘proved,’ and hence that ‘there is no defense’ thereto. [Citation.]” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c, subd. (p)(1).) “Once the plaintiff ... has met that burden, the burden shifts to the defendant ... to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The defendant ... may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.” (Code Civ. Proc. § 437c, subd. (p)(1).) The Complaint asserts causes of action for 1) breach of contract; and 2) breach of guaranty. The elements of breach of contract/guaranty are (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach.” (Miles v. Deutsche Bank National Trust Company (2015) 236 Cal.App.4th 394, 402.)